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In shadow of Monterey Park shooting, Newsom signs array of gun bills, including tax on guns, ammo

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With the memory of the mass shooting in Monterey Park still looming, Gov. Gavin Newsom on Tuesday, Sept. 26, signed an array of gun-safety laws, ranging from a ban on people carrying firearms in most public places to a measure doubling the taxes on guns and ammunition sold in the state.

Some of the nearly two dozen new anti-gun-violence laws will no doubt test the limits of the U.S. Supreme Court's new standard for interpreting the Second Amendment. Leaders, however, say given the bloodshed that gun violence has wrought in California over the last year, it's worth trying.

"The carnage, it's too much, Newsom said. "We can't normalize it, we can't accept it. This is a small price to pay."

The legislation carries familiar names locally, authored by lawmakers who represent districts impacted by mass shootings. They include:

* SB 2, introduced by state Sen. Anthony Portantino, D-Pasadena, which seeks to strengthen the state's public carry regulations;

* SB 452, from state Sen. Catherine Blakespear, D-Encinitas, requiring microstamping on handgun cartridges to help trace guns used in crimes;

* AB 28, from Assemblymember Jesse Gabriel, D-Woodland Hills, enacting what officials called a first-in-the-nation effort to generate $160 million annually on the sale of bullets with a goal of improving school safety and gun violence intervention programs;

* AB 455, from Assemblymembers Sharon Quirk-Silva, D-La Palma, and Diane Papan, D-San Mateo) seeking to keep guns from potentially dangerous individuals;

* AB 725, from Assemblymember Josh Lowenthal, D-Long Beach, which updates the definition of a firearm to include ghost gun parts; and

* AB 732, Assemblymember Mike Fong, D-Monterey Park, beefing up the process for removing firearms from people who are prohibited from owning them.

Newsom, flanked by state Atty. Gen. Rob Bonta and supporters, acknowledged many of these laws might not survive legal challenges now that the Supreme Court has imposed a new test on interpreting the nation's gun laws.

In June 2022, the court, in New York State Rifle & Pistol Association v. Bruen, invalidated New York state's limits on carrying concealed handguns outside the home. It's new test for whether a law passes constitutional muster: restrictions must be "consistent with this nation's historical tradition of firearm regulation," and not simply to further an important government interest.

Just last week, a federal judge struck down a California law banning guns with detachable magazines that carry more than 10 rounds — one of three major pending cases challenging California's gun restrictions.

"It may mean nothing if the federal courts are throwing them out," Newsom said. "We feel very strongly that these bills meet the (new standard), and they were drafted accordingly. But I'm not naive about the recklessness of the

federal courts and the ideological agenda."

The California Rifle and Pistol Association has already sued to block Portantino's bill, which bans people from carrying guns in most public places.

The bill enhances the existing licensing system, overhauling concealed carry permits and seeking to ensure those who carry firearms in public are "responsible and law-abiding individuals." It sets a minimum age requirement of 21 years of age, beefs up firearm training requirements and identifies certain "sensitive" public places.

The new law specifically bans people from carrying guns in 26 places, including public parks and playgrounds, public demonstrations and gatherings, amusement parks, churches, banks, zoos and "any other privately owned commercial establishment that is open to the public" unless the owner puts up a sign saying guns are allowed."

Opponents wasted no time in pushing back on the new legislation.

"These laws will not make us safer. They are an unconstitutional retaliatory and vindictive response to the Supreme Court's affirmation that the Second Amendment protects an individuals' right to choose to own a firearm for sport or to defend your family," said Chuck Michel, president of the California Rifle and Pistol Association. "They are being challenged, and the second they are signed, the clock starts ticking towards a judgment striking them down."

Newsom — a potential Democratic candidate for president beyond 2024 — has a reputation as one of the country's most liberal governors. But he has often refused to raise taxes, even for causes he supports like combating climate change.

However, Newsom said he viewed one of the bills, which taxes gun sales and ammunition, differently than the other general increases he tends to oppose. He argued that gun violence already costs taxpayers a lot of money in health impacts and in the criminal justice system.

No other state has a special tax just for guns and ammunition, although some local governments do. Tennessee once had a 10-cent tax on shotgun shells, but that tax was repealed in 2019. Pennsylvania collects a $3 surcharge on gun sales to pay for background checks. Fees on California gun purchases currently total more than $37, with most of that money paying for background checks.

The tax has some exceptions. It would not apply to police officers and it would not apply to businesses with sales of less than $5,000 over a three-month period. State officials estimate it would generate about $159 million annually.

The law says the first $75 million of that money must go to the California Violence Intervention and Prevention Grant Program. The program has funded projects targeting young people in gangs, including sports programs, life coaching and tattoo removal.

The next $50 million would go to the State Department of Education to boost security at public schools. That includes things like physical security improvements, safety assessments, after-school programs for at-risk students and mental and behavioral health services for students, teachers and other school employees.

California has some of the lowest gun death rates in the country, ranking 43rd out of 50 states with 9 deaths for every 100,000 people, according to 2021 data from the Centers for Disease Control and Prevention. But violent crimes have increased recently. The violent crime rate increased by 6.1% in 2022, according to the California Department of Justice.

The echoes of mass shootings from Monterey Park to Half Moon Bay propelled the legislation.

It was on Jan. 21, amid Monterey Park's Lunar New Year celebration when a gunman walked into Star Ballroom Dance Studio on Garvey Avenue and opened fire, killing 11. The man had voiced paranoid thoughts to authorities before the tragedy, in which he used a semiautomatic handgun.

The tragedy set off a major effort by the Monterey Park City Council and local lawmakers to lobby for gun safety legislation at not the state and federal levels but also within the city.

In August, the City Council unanimously approved an ordinance that will outlaw retail sales of gun sales within a 1,000-foot zone around "sensitive receptors" such as schools and residences.

"In our tight-knit San Gabriel Valley community, the Monterey Park mass shooting broke our hearts," Fong said. "We continue to honor the lives, lost by fighting to make our neighborhoods safer from gun violence. I am grateful to all the advocates, including the Prosecutors Alliance of California, and community leaders for supporting my legislation."

Monterey Park has supported other gun reform bills, including Senate Bill 14: Age 21 Act, Senate Bill 25: Assault Weapons Ban of 2023 and California Senate Bill 2, prohibiting a person from carrying a concealed firearm or carrying a loaded firearm in public.

"I applaud and deeply appreciate Governor Newsom and the state legislature for adopting these common-sense gun laws." said Thomas Wong, Monterey Park's Mayor Pro Tem, "These help keep our community safe, which is our primary responsibility as elected officials. I expect that we will continue to build on these efforts at both the state and, most importantly, the federal level."

The city itself became the backdrop to President Joe Biden's visit in March, in which he renewed a call for Congress to revive expired federal legislation that bans assault weapons.

In February, responding to the Monterey Park shooting, the L.A. County Board of Supervisors passed a package of measures seeking to curb gun violence, and proposed others, including a similar buffer zone requiring gun stores to operate at least 1,000 feet away from schools, parks or daycare centers or other gun shops in unincorporated areas.

The Board also banned the sale of large-caliber handguns and ammunition and one that prohibits people from carrying guns in county parks, plazas, beaches and buildings — with exceptions for law enforcement, active military and others.

Staff Writer Georgia Valdes and The Associated Press contributed to this story.

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